APOSTOLIC FAITH MISSION IN ZIMBABWE

Versus

ABRAHAM MASAMBA

And

AMON NYIKA CHINYEMBA

And

ODAR HOUSING DEVELOPMENT CONSORTIUM

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE 19 September 2025 & 12 January 2026

Application for absolution from the instance

B. Magogo for the plaintiff
L. Madhuku for the 1st and 2nd defendants
C.T. Manyani for the 3rd defendant

DUBE-BANDA J:

[1] This is an application for absolution from the instance made by the defendant after the plaintiff closed its case. This application is made in terms of r 56(6) of the High Court Rules, 2021.

[2] The plaintiff is the Apostolic Faith Mission in Zimbabwe ("the AFM or the church"). The first defendant is a pastor. The second defendant is described as the former Overseer of the Harare East Province of the church. The third defendant ("Odar Housing Development Consortium") is a land developer responsible for allocating stands in Southlea Park, where the stand at the centre of the dispute between the church and the second defendant is located.

[3] This trial commenced on 8 July 2025. A number of witnesses testified for the plaintiff. At the close of the plaintiff's case, the defendants indicated their intention to apply for absolution from the instance, which they did.

[4] This matter commenced as a court application and was converted to action proceedings. To distil the relevant evidence adduced at the trial, it is necessary to provide a skeletal outline

of the plaintiff's pleadings. This will assist in determining whether a case has been made for absolution from the instance.

[5] The plaintiff seeks relief couched in the following terms:

a) An order declaring plaintiff as the entity which acquired the title, rights, and interests in stand 34 Southlea Park, Harare.
b) An order that the agreement of sale between the second and third defendants in respect of stand number 34, Southlea Park, Harare, is null and void and is hereby set aside.
c) An order that the third defendant be and is hereby ordered to replace second defendant with plaintiff as the lessee in all its records so that henceforth its records will reflect plaintiff as the holder of rights, title and interest in stand number 34 Southlea Park, Harare.
d) An order that the first and second defendants and all those claiming occupation through them be and are hereby evicted from stand number 34 Southlea Park, Harare.
e) An order directing the Sheriff for Zimbabwe or his lawful deputy is hereby authorised to evict first and second defendants and those claiming occupation through them from stand number 34 Southlea Park, Harare within 48 hours of their failure to comply with paragraph (d) of this order.
f) An order that defendants pay the plaintiff's costs, jointly and severally and in soiidium, the one paying the other to be absolved, on an attorney and client scale.

Alternatively;

a) An order that the second defendant shall reimburse plaintiff for all the costs of acquisition and value of all the improvement at stand number 34 Southlea Park, Harare.
b) An order, in order to determine the quantum of compensation, the parties will enlist the services of an estate agent agreed to between the parties, or failing such agreement, appointed by the Estate Agents' Council, to carry out a full valuation of all the acquisition and improvements costs at stand number 34 Southlea Park, Harare and shall file such a report with the Registrar of this court.
c) An order that the professional costs of such estate agent shall be borne equally as between plaintiff and second defendant.
d) Second defendant to pay plaintiff's costs of suit on the attorney and client scale.

[6] In its declaration, the plaintiff contends that in December 2012, it acquired rights, title, and interests in stand number 34 Southlea Park, Harare ("the stand or the property"). It avers that it took occupation and possession of the stand as a place of worship for its Southlea Park members, known as the Royal Palace Assembly. It is contended that the stand was acquired from the third defendant through the second defendant, who was plaintiff's employee. He was entrusted with the obligation to foresee payments and completion of the paperwork for the stand. It is averred that instead of registering the stand in the name of the plaintiff, the second defendant fraudulently misrepresented to the third defendant that he was acquiring the stand in his own right and registered it in his name. It is further averred that he concealed from the church and the local assembly leadership that the stand was registered in his name.

[7] It is contended that on 20 December 2012, the plaintiff began construction works at the stand, i.e., a seventeen-roomed pastor's residence; church shade; toilets,; and drilled a borehole; and erected tank stand for a 500-litre tank. It is contended that following leadership wrangles at the church, the second defendant removed the Royal Assembly pastor and replaced him with the first defendant, his own protégé. In addition, the second defendant is alleged to have excluded from worshiping at the Royal Palace members aligned to the plaintiff and allowed a faction against the church to use the premises for worship.

[8] It is contended further that the second defendant has been dismissed from the church and has formed or joined a church under the name Apostolic Faith Mission of Zimbabwe. It is averred that the first defendant is in illegal possession of the plaintiff's property. In summary, the plaintiff pleads that it acquired the stand, took possession and occupation, and developed it. It is on these pleadings that the plaintiff seeks the order stated above.

[9] In their plea, the first and second defendants contend that the plaintiff does not have rights, title, and interests in the stand, and neither is it the registered owner of the stand. It is contended further that the second defendant acquired rights, title, and interests in the stand in his own personal right and not on behalf of the plaintiff. It is averred that the second defendant made available the stand to members of the church under the pastoral care of the first defendant. It is disputed that the plaintiff made any improvements on the stand. The first and second defendants sought that the claim be dismissed on a legal practitioner and client scale.

[10] In its plea, the third defendant contends that the second defendant applied for a stand, and it was allocated to him, and he acquired it in his personal capacity.

[11] At a further pre-trial conference held before a judge in terms of r 49(5) of the High Court Rules, 2021, the following were identified as the issues for trial

i. Whether or not the plaintiff is the entity which acquired certain rights, title and interests in stand number 34, Southlea Park, Harare, and if so, whether or not the plaintiff is entitled to evict the first and second defendants and all those claiming occupation through them stand 43, Southlea Park, Harare?

ii. Whether or not, in the alternative, the plaintiff is entitled to compensation from second defendant for the full value of the acquisition of the stand in issue and all the improvements and developments therein.

[12] In terms of the pre-trial conference minute, the *onus* on both issues is on the plaintiff. Although the issue of the duty to begin was not canvassed at the pre-trial conference before a judge, as the *onus* is on the plaintiff, and therefore it has the duty to begin.

[13] In their written submissions, the first and second defendants argued that there is no evidence upon which a reasonable court may find for the plaintiff. They argued that both the plaintiff's pleadings and the evidence do not disclose a cause of action. It is submitted further that the plaintiff's witnesses accepted that only through an agreement with the third defendant may the plaintiff acquire rights in the stand; it did not enter into any agreement of purchase and sale with the third defendant; the third defendant has a subsisting agreement of purchase and sale with the second defendant in his private capacity; and it did not make any payment towards the purchase price.

[14] It is further argued that, according to the key plaintiff's witnesses, President Madawo and Overseer Nehanda, the sole basis for the claim is that the second defendant misrepresented to the third defendant that he was buying the stand in his private capacity. It was argued that misrepresentation can only be raised by a party to a contract, and the plaintiff, not being a party to the contract between the second and third defendant, cannot raise misrepresentation. Regarding the alternative claim, it is argued that there is no evidence on unjust enrichment that was led nor do the pleadings make a case for unjust enrichment. A scrutiny of the third defendant's written submissions shows that it deals with the same issues taken by the first and second defendants.

[15] The principles to be applied at the absolution stage are trite. The test to apply in considering an application for absolution is not that the evidence led by the plaintiff established a case that would be sustained if the case were to proceed to its conclusion. The essential inquiry in determining whether to grant absolution from the instance is whether there is evidence upon which a court, when applying its mind reasonably, could or might find for the

plaintiff. In other words, a court would not grant absolution from the instance in a case where the plaintiff has, at the end of his or her case, presented an answerable case or *prima facie* case. Thus, the threshold required by the law, which the plaintiff has to satisfy in opposing an application for absolution from the instance at the close of his or her case, is very low. See *Gordon Lloyd Page & Associates* v *Rivera and Another* 2001 (1) (SCA) at 92E-93A; *Claude Neon Lights (SA) Ltd* v *Daniel* 1976 (4) SA 403 (A) at 409G-H.

[16] To refuse absolution, this court must be satisfied that the evidence establishes a *prima facie* case. If a *prima facie* case is not met, then absolution may be granted in respect of the plaintiff's claim. See *Marine & Trade Insurance Co Ltd* v *Van der Schyff* 1972 (1) SA 26 (A) at 37G.

[17] Absolution is not granted lightly. A defendant ought not to evade the witness box by exploiting the procedure for absolution. However, this principle ought to yield when absolution serves the interests of justice. Put differently, if the requirements for absolution are met, then absolution ought to be granted. It would not be in the interest of justice for the defendant to be made to answer a deficient or non-existent case. This procedure allows bad cases to be weeded out, thus protecting scarce judicial resources from being spent on cases that do not merit further judicial attention. In this way, absolution serves the interests of justice and promotes the more efficient and effective administration of justice.

[18] It is through the lens of the above legal principles that I now turn to the plaintiff's evidence to ascertain whether a *prima facie* case has been established. At this stage of the proceedings, the court has one version, i.e., the plaintiff's version. *Prima facie,* the evidence of the plaintiff's witnesses, i.e., Pastor Sigauke, architect Blessed Fambai, President Rev Madawo, and the incumbent Harare East Province Overseer Rev Nehanda, shows that the second defendant was, at the time the stand was purchased a full-time employee of the plaintiff. That, within the course and scope of his employment as Overseer, the second defendant established new assemblies on behalf of the plaintiff, in the Southlea Park area he established three sites, namely Southlea Park Central, Royal Palace, and Springs of Grace. The second defendant was tasked with the responsibility of approaching the third defendant to acquire land on behalf of the plaintiff. That in respect of Southlea Park Central and Springs of Grace, he acquired the two stands in the name of the plaintiff. In respect of the Royal Palace Assembly, the stand in issue in this case, he acquired it in his name and did not disclose this development to the plaintiff. The members of the plaintiff contributed funds to build all the structures on the stand on the basis that it was church property. That the plaintiff and its Royal Palace Assembly membership only became

aware of the second defendant's claim in the stand following the split of the church and the second defendant's departure to join another church. That, after the split in the church, a request was made to the architect to replace the name of the church from designs and drawings with that of the second defendant, which request was not effected.

[19] It is trite that at this stage of the proceedings, the court will not concern itself with issues of credibility, except in cases where the evidence tendered by the plaintiff is so poor or so improbable to the extent that no court would place any reliance upon it. Such is not the case in *casu.* In addition, where the plaintiff's evidence gives rise to more than one plausible inference, any one of which is in his or her favour in the sense of supporting his or her cause of action and is destructive of the defence, absolution is an inappropriate remedy. In addition, issues of law generally cannot be resolved at this stage of the proceedings. They can be determined and resolved at the end of the trial, when the court has all the evidential material before it.

[20] In *Beta Holdings* v *Rio Zim (Pvt) Ltd HH* 397/17, the court had this to say regarding the granting of an order for absolution from the instance: "…. the order should be granted when the plaintiff's claim is hopeless at the close of the plaintiff's case." By any standard, the plaintiff's claim cannot be said to be hopeless. I am satisfied that, on the evidence on record and summarised above, the plaintiff has established a *prima facie* case that calls for an answer. It must be recalled that absolution from the instance, the authorities say, should not be lightly granted if there is evidence supporting the claim. In my considered view, such evidence has been presented by the plaintiff, and which evidence requires an answer from the defendants. My view is that on this evidence, without more, a court might make a reasonable mistake and decide in favour of the plaintiff. In the circumstances, the application for absolution from the instance cannot succeed.

[21] The plaintiff has been successful in these proceedings and is entitled to its costs. No good grounds exist for a departure from the general rule that costs follow the event.

In the result, I make the following order:

i. The application for absolution from the instance is dismissed.
ii. The defendants, jointly and severally, each paying the other to be absolved, are ordered to pay the plaintiff's costs relating to the application for absolution from the instance.
iii. The Registrar is directed to set down this matter for continuation of the trial.

Shambamuto Law Chambers, plaintiff's legal practitioners
Lovemore Madhuku Lawyers, 1st and 2nd defendants' legal practitioners
TH Chitapi & Associates, 3rd defendant's legal practitioners